

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
LASHAWN DELIMA

Plaintiff(s),

-against-

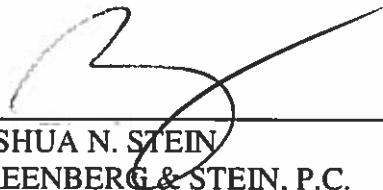
THE CITY OF NEW YORK, POLICE OFFICER MICHAEL
DESPOSITO, BADGE NO. 2001 and POLICE OFFICERS
"JOHN/JANE DOE 1-3", as fictitious name of real individuals
whose true identities are unknown at the present timeDefendant(s).
-----X

Index No.:

Date Purchased:

SUMMONSPlaintiff designates Kings
County as the place of
trial.The basis of venue is:
Place of OccurrencePlaintiff resides at:
339 Montauk Ave, #2C
Brooklyn, NY 11208
County of Kings**To the above named Defendant:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 2, 2016

JOSHUA N. STEIN
GREENBERG & STEIN, P.C.
Attorney for Plaintiff(s)
Lashawn Delima
360 Lexington Avenue, Suite 1501
New York, New York 10017
(212) 681-2535
Our File No. 6293

TO:

CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICER MICHAEL DESPOSITO, BADGE NO. 2001
c/o his employer New York City Police Department
1 Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LASHAWN DELIMA

Plaintiff(s),

-against-

Index No.:
Date Purchased:

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER MICHAEL
DESPOSITO, BADGE NO. 2001 and POLICE OFFICERS
"JOHN/JANE DOE 1-3", as fictitious name of real individuals
whose true identities are unknown at the present time

Defendant(s).
-----X

Plaintiff, by his attorneys, **GREENBERG & STEIN, P.C.**, complaining of the
Defendant, respectfully alleges, upon information and belief:

1. That at the time of the commencement of this action, Plaintiff **LASHAWN K. DELIMA** resided in the County of Kings, City and State of New York.
2. That the cause of action alleged herein arose in the County of Kings, City and State of New York.
3. That this action falls within one or more of the exceptions set forth in CPLR §1602.
4. That on May 7, 2015, and at all times herein mentioned, Defendant **CITY OF NEW YORK** was, and still is, a municipal corporation.
5. That prior hereto on August 14, 2015, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller for the City of New York and that thereafter

said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. That on January 25, 2016, Plaintiff LASHAWN DELIMA appeared for a hearing pursuant to the General Municipal Law 50-H which was held at the offices of the Comptroller of the City of New York or of its designated agent.

7. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

8. That at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** maintained, controlled, operated and supervised the New York City Police Department.

9. That at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, Defendant **THE CITY OF NEW YORK**.

10. That at all times hereinafter mentioned, Defendants **POLICE OFFICER MICHAEL DESPOSITO, BADGE NO. 2001** was, and still is, a duly sworn police officer, employee of the Defendant **CITY OF NEWYORK** and was acting under the supervision of said department and according to their official duties.

11. At all times hereinafter mentioned, the Defendant **POLICE OFFICER MICHAEL DESPOSITO, BADGE NO. 2001**, either personally or through his

employer, was acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

12. Each and all of the acts of the Defendant **POLICE OFFICER MICHAEL DESPOSITO, BADGE NO. 2001**, individually and in his official capacities, alleged herein were done by said defendant while acting within the scope of his employment by Defendant **THE CITY OF NEW YORK**.

13. Each and all of the acts of the Defendant **POLICE OFFICER MICHAEL DESPOSITO, BADGE NO. 2001**, individually and in his official capacities, alleged herein was done by said defendant while acting within the furtherance of his employment by Defendant **THE CITY OF NEW YORK**.

14. That at all times hereinafter mentioned, Defendants **POLICE OFFICERS “JOHN/JOHN DOE(S)” 1-3** were, and still are, duly sworn police officers, employees of the Defendant **CITY OF NEWYORK** and were acting under the supervision of said department and according to their official duties.

15. At all times hereinafter mentioned, the Defendants, either personally or through their employers, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

16. Each and all of the acts of the Defendants **POLICE OFFICERS “JOHN/JOHN DOE(S)” 1-3** individually and in their official capacities, alleged herein were done by said defendants while acting within the scope of their employment by Defendant **THE CITY OF NEW YORK**.

17. Each and all of the acts of the Defendants **POLICE OFFICERS “JOHN/JOHN DOE(S)” 1-3**, individually and in their official capacities, alleged herein were done by said

defendants while acting within the furtherance of their employment by Defendant **THE CITY OF NEW YORK**.

STATEMENT OF THE FACTS

18. That on May 07, 2015, and at all times herein mentioned, a public thoroughfare and roadway portions thereto existed in the County of Kings, City and State of New York known as Weldon Street and Crescent Street, County of Kings, State of New York.

19. That on May 7, 2015, and at all times herein mentioned, the Defendant **CITY OF NEW YORK** by its servants, agents and/or employees, to wit, **POLICE OFFICER MICHAEL DESPOSITO, BADGE NO. 2001** and **POLICE OFFICERS “JOHN/Jane DOE(S)” 1-3**, while acting under the color of State Law, acting pursuant to the policies and practices set by the executive and/or legislative branches of the government of the Defendant **CITY OF NEW YORK** and while in the furtherance of their duties as police officers, stopped, searched, threatened, arrested and were discourteous to the Plaintiff without provocation.

20. At no time did the Defendant officers possess probable cause to stop and search the vehicle Plaintiff was driving.

21. At no time did the Defendant officers possess information that would lead a reasonable officer to believe she/he had probable cause to stop search the vehicle Plaintiff was driving.

22. At no time did Plaintiff given the officers reason to threaten him and to be discourteous to him.

23. As a direct result of his arrest and the unlawful acts of the defendants, Plaintiff spent approximately 24 hours in custody, most of that time while still being handcuffed.

24. Despite defendants actions all charges against Plaintiff were dismissed in their entirety and his record sealed as per the Plaintiff's Disposition dated July 20, 2015.

25. As a result of the foregoing, Plaintiff sustained, inter alia, mental anguish, shock, fright, apprehension, embarrassment, humiliation and deprivation of his constitutional rights.

AS AND FOR A FIRST CAUSE OF ACTION FOR DEPRIVATION OF FEDERAL RIGHTS UNDER 24 U.S.C. §1983

26. Plaintiff repeats, re-alleges and reiterate each and every allegation set forth above with the same forth and effect as if fully set forth herein and at length.

27. That on or about May 7, 2015, the Defendant **CITY OF NEW YORK**, and by its agents, servants and/or employees to wit, **POLICE OFFICER MICHAEL DESPOSITO, BADGE NO. 2001** and **POLICE OFFICERS "JOHN/JANE DOE(S)" 1-3** conspired to and did violate the civil rights and civil liberties of the Plaintiff **LASHAWN DELIMA** in violation of Title 42 U.S.C § 1981 & 1983 *et seq.*, the United States Constitution and Bill of Rights, and the New York State Constitution.

28. That the violation of the Plaintiff **LASHAWN DELIMA'S** civil rights resulted from the wrongful acts of the Defendant **CITY OF NEW YORK**, its agents, servants and/or employees, to wit, **POLICE OFFICER MICHAEL DESPOSITO, BADGE NO. 2001** and **POLICE OFFICERS "JOHN/JANE DOE" 1-3** upon Plaintiff, in violation of the Title 42 U.S.C. §1983 and §1981 *et seq.*, the United States Constitution and Bill of Rights.

29. That on or about August 7, 2015, Defendant **CITY OF NEW YORK**, its agents, servants and/or employees to wit, **POLICE OFFICER MICHAEL DESPOSITO, BADGE**

NO. 2001 and POLICE OFFICERS “JOHN/JANE DOE” 1-3 did violate the civil rights and civil liberties of the Plaintiff **LASHAWN DELIMA** in violation of the Title 42 U.S.C. §1983 and §1981 *et seq.*, the United States Constitution and Bill of Rights.

30. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

31. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures and rules of the City of New York and New York City Police Department, all under the supervision of the ranking officers of said department.

32. Defendants, collectively and individually, were acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

33. That as a result of the acts of the Defendants, their agents, servants and/or employees. Plaintiff demands punitive damages and reasonable attorney’s fees all in amount which exceeds jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR UNLAWFUL SEARCH UNDER 42 U.S.C. §1983

34. Plaintiff repeats, re-alleges and reiterates each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

35. As a result of the foregoing Plaintiff was subjected to an unreasonable and intrusive search of his person that shocks the conscience in violation of his right to due process and to be free from unreasonable search as secured by the Constitution of the United States.

36. As a result of the aforesaid conduct by Defendants, Plaintiff's person and possessions were illegally, improperly and unreasonably searched without a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as secured by United States Constitution.

**AS AND FOR A THIRD CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER NEW YORK LAW**

37. Plaintiff repeats, re-alleges and reiterates each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

38. Defendants misrepresented and falsified evidence before the Kings County District Attorney.

39. Defendants did not make a complete and full statement of facts to the District Attorney.

40. Defendants withheld exculpatory evidence from the District Attorney.

41. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.

42. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.

43. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

44. Defendants were directly and actively involved in the continuation of criminal proceedings against the Plaintiff.

45. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.

46. Defendants misrepresented and falsified evidence throughout all phases of

criminal proceedings.

47. Specifically, Defendants falsely, maliciously and knowingly alleged that Plaintiff was in possession of a controlled substance, specifically cocaine.

48. Notwithstanding the perjurious and fraudulent conduct of the Defendants, the criminal charges were dismissed in their entirety by disposition on July 20, 2015.

49. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated.

50. By reason of all of the foregoing, Plaintiff is entitled to damages in an amount exceeding the monetary jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING,
TRAINING AND RETENTION UNDER NEW YORK LAW**

51. Plaintiff repeats, re-alleges and reiterates each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

52. Defendant **THE CITY OF NEW YORK** and the New York City Police Department, through their agents, servants, and/or employees, were negligent in the screening, hiring, training, retention and supervision of its employees and failed to take such necessary and proper steps as to prevent the occurrence described above.

53. As a result of the foregoing, Plaintiff's liberties were violated by the aforementioned police officers due to the malicious prosecution as set forth above.

54. By reason of the foregoing, Plaintiff is entitled to damages in excess of the monetary jurisdictional limits of all lower courts.

**AS AND FOR THE FIFTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER 42 U.S.C. §1983**

55. Plaintiff repeats, re-alleges and reiterates each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

56. Defendants misrepresented and falsified evidence before the Kings County District Attorney.

57. Defendants did not make a complete and full statement of facts to the District Attorney.

58. Defendants withheld exculpatory evidence from the District Attorney.

59. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.

60. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.

61. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

62. Defendants were directly and actively involved in the continuation of criminal proceedings against the Plaintiff.

63. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.

64. Defendants misrepresented and falsified evidence throughout all phases of criminal proceedings.

65. Specifically, Defendants falsely, maliciously and knowingly alleged that Plaintiff was exposing himself in public on May 22, 2013.

66. Notwithstanding the perjurious and fraudulent conduct of the Defendants, the criminal charges were dismissed in their entirety.

67. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety and he was humiliated, arrested and restrained without probable cause.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR RELIEF FOR MUNICIPAL
LIABILITY UNDER 42 U.S.C. §1983**

68. Plaintiff repeats, re-alleges and reiterates each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

69. Plaintiff was stopped, frisked, searched and threatened in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said "stop and frisk" would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

70. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

71. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

72. Those customs, policies, patterns, and practices include, but not limited to:

- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
- ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
- iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
- iv. failing to properly train police officers in the requirements of the United States Constitution.

73. The aforesaid customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department directly cause, inter alia, the following unconstitutional outcomes:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
- iii. falsifying evidence and testimony to support those arrests;
- iv. falsifying evidence and testimony to cover up police misconduct;
- v. subjecting individuals to intrusive strip searches in the absence of particularized suspicion.

74. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

75. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

76. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

77. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department Plaintiff was unlawfully detained.

78. Defendants, collectively and individually, while acting under the color of state law, were directly and actively involved in violating the constitutional rights of the Plaintiff.

79. Defendants, collectively and individually, while acting under the color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.

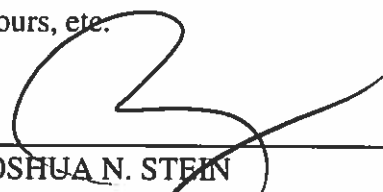
80. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to:

- i. not to be deprived of liberty without due process of law;
- ii. to be free from seizures and arrest not based upon probable cause;
- iii. to be free from search not based upon the constitutionally mandated level of cause or suspicion;
- iv. to be free from unwarranted and malicious criminal prosecution;
- vi. to receive equal protection under the law;

WHEREFORE, Plaintiff(s) demand(s) judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
August 2, 2016

Yours, etc.



JOSHUA N. STEIN
GREENBERG & STEIN, P.C.
Attorney for Plaintiff(s)
Lashawn K. Delima
360 Lexington Avenue, Suite 1501
New York, New York 10017
(212) 681-2535
Our File No. 6293

ATTORNEY'S VERIFICATION

JOSHUA N. STEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

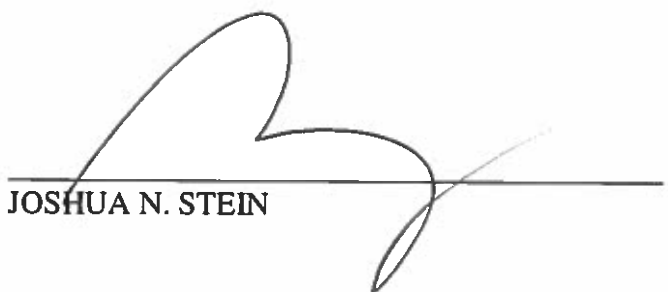
I am an attorney at GREENBERG & STEIN, P.C., attorneys of record for Plaintiff(s), **LASHAWN K. DELIMA**.

I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: New York, New York
August 2, 2016



JOSHUA N. STEIN

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff(s),

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NO. 2001 and POLICE OFFICERS "JOHN/JANE DOE 1-3", as fictitious name of real
individuals whose true identities are unknown at the present time

Defendant(s).

SUMMONS AND COMPLAINT

GREENBERG & STEIN, P.C.
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